



**IN THE HIGH COURT OF PUNJAB AND HARYANA  
AT CHANDIGARH**

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**213**

**CRM-M-32422-2026**

**Date of Decision.:15.06.2026**

**Vinod and Another**

**.....Petitioners**

**Vs.**

**State of Haryana and Others**

**.....Respondents**

**CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA**

Present:- Mr. Sandeep Sharma, Advocate for the petitioners.

Mr. Abhinav Mahant, AAG, Haryana.

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**DEEPAK GUPTA, J. (ORAL)**

By way of the present petition filed under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (corresponding to Section 482 Cr.P.C.), the petitioners seek issuance of directions to respondent No.1 for conducting a fair and impartial investigation in FIR No.0115 dated 17.05.2026 registered under Section 20(b)(ii)(A) of the Narcotic Drugs and Psychotropic Substances Act, 1985 at Police Station Dadri Sadar, District Charkhi Dadri. A further prayer has been made for directing the respondents to return the DVR allegedly taken from the petitioners' house and to preserve the CCTV footage. Petitioners also seek production of CCTV recordings of Police Station Sadar Dadri pertaining to the intervening night of 17/18.05.2026.

2. Learned counsel for the petitioners contends that the investigation is not being conducted in a fair and transparent manner. It is submitted that respondent No.3, accompanied by a dog squad team, visited the house of the petitioners without any search warrant and conducted an illegal search. It is further alleged that signatures of certain persons present in the locality were obtained forcibly to create evidence in

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support of the search proceedings. According to the petitioners, the DVR installed at their residence was forcibly taken away by the police and certain CCTV cameras installed inside and outside the house were damaged. On the strength of these allegations, it is argued that intervention of this Court is warranted to ensure a fair investigation.

3. *Per contra*, learned State counsel, on the basis of the reply filed on behalf of the respondents, submits that the allegations are wholly incorrect and devoid of substance. It is stated that acting upon secret information, petitioner Vinod along with co-accused Nikhil was apprehended on 17.05.2026 while travelling in a Swift car. During search, 12 grams of charas was allegedly recovered from the dashboard of the vehicle after compliance of the statutory provisions of the NDPS Act. During interrogation, the accused disclosed that the recovered contraband had been procured from Bhateri Devi alias Guddi at the instance of her son Deepak. Consequently, Bhateri Devi was also arrested during investigation. It is not disputed that all the accused persons, namely Bhateri Devi, Nikhil and Vinod, have since been granted bail.

4. The respondents further assert that regular search operations are being conducted jointly by the District Police and the Haryana State Narcotic Control Bureau against persons suspected to be involved in narcotic activities. It is stated that the house of the petitioners was searched as part of such routine anti-narcotics operations. The respondents have specifically denied that any DVR was seized from the petitioners' residence or that any CCTV camera was damaged by the police officials. According to the respondents, no DVR was found at the premises despite inspection. It is further stated that the investigating agency itself required access to the DVR footage to identify persons allegedly visiting the premises in connection with narcotic activities and, therefore, there was no occasion for the police to remove or destroy such material. The allegation of illegal seizure has thus been categorically denied.

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5. I have heard learned counsel for the parties and carefully considered their respective submissions.

6. The primary relief sought by the petitioners is a direction for fair and impartial investigation. However, except for making bald allegations regarding seizure of DVR and destruction of CCTV cameras, no cogent material has been placed on record to substantiate the plea that the investigation is tainted, biased or actuated by mala fides. It is settled law that investigation of a cognizable offence falls within the exclusive domain of the investigating agency and constitutional courts ordinarily refrain from interfering in the investigative process unless a clear case of mala fide exercise of power, deliberate inaction or manifest abuse of process is made out.

7. The respondents have specifically denied having seized any DVR from the petitioners' residence. They have also denied the allegation regarding destruction of CCTV cameras. In the absence of any prima facie material supporting the allegations levelled by the petitioners, this Court finds no justification to issue a direction either for return of the DVR or for preservation of footage allegedly contained therein. A writ or inherent direction cannot be issued merely on the basis of unsubstantiated assertions, particularly when the factual foundation itself is seriously disputed.

8. Similarly, no material has been brought on record to indicate that the CCTV footage of Police Station Sadar Dadri is necessary for adjudication of any existing legal right of the petitioners or that the investigating agency has acted in violation of any statutory mandate. Such a roving and fishing inquiry cannot be directed by this Court in exercise of its inherent jurisdiction.

9. It is equally significant that the petitioners have not been able to point out any specific act on the part of the investigating agency demonstrating bias, unfairness or lack of objectivity in the investigation.

Mere apprehension of unfair investigation, unsupported by credible material, is insufficient to invoke the extraordinary jurisdiction of this Court under Section 528 BNSS.

10. In view of the foregoing discussion, this Court is satisfied that no case is made out for issuance of any direction regarding the conduct of investigation or for grant of the ancillary reliefs sought by the petitioners.

11. Consequently, without expressing any opinion on the merits of the case pending investigation, the present petition is dismissed.

(DEEPAK GUPTA)  
JUDGE

June 12, 2024

Neetika Tuteja

|                           |        |
|---------------------------|--------|
| Whether Speaking/reasoned | Yes/No |
| Whether Reportable        | Yes/No |